

Section I: English Including Comprehension

Directions (Q. Nos. 1-10): Read the given passage carefully and attempt the questions that follow.

It is an old saying that knowledge is power. Education is an instrument, which imparts knowledge and therefore, indirectly controls power. Therefore ever since the dawn of our civilization, persons in power have always tried to supervise or control education. It has been handmaid of the ruling class. During the Christian era, the ecclesiastics controlled the institution of education and diffused among the people the gospel of the Bible and religious teachings. These gospels and teachings were no other than a philosophy for the maintenance of the existing society.

It taught the poor man to be meek and to earn his bread with the sweat of his brow, while the priests and the landlords lived in luxury and fought duels for the slightest offence. During the Renaissance, education passed more from the clutches of the priest into the hands of the prince. In other words, it became more secular. Under the control of the monarch, education began to devise and preach the infallibility of its masters, the monarch or king. It also invented and supported fantastic theories like 'The Divine Right Theory' and that the king can do no wrong etc. With the advent of the industrial revolution, education took a different turn and had to please the new masters. It now no longer remained the privilege of the baron class, but was thrown open to the new rich merchant class of the society. The philosophy, which was in vogue during this period was that of 'Laissez Faire' restricting the function of the state to a mere keeping of laws and order while on the other hand, in practice the law of the jungle prevailed in the form of free competition and the survival of the fittest.

1. What does the theory 'Divine Right of King' stipulate?
 - (a) The kings are God
 - (b) That the right of governing is conferred upon the kings by God
 - (c) They have the right to be worshipped like Gods by their subjects
 - (d) That the right of kings are diving and therefore sacred
2. Who controlled education during the Renaissance?
 - (a) The common people
 - (b) The prince
 - (c) The church and the priests
 - (d) None of the above
3. What did the ruling class in the Christian Era think of the poor man?
 - (a) That he is the beloved of God
 - (b) That he deserves all sympathy of the rich
 - (c) That he should be strong and lord over others
 - (d) That he is meant for serving the rich
4. Who controlled the institution of education during the Christian Era?
 - (a) The secular leaders of society
 - (b) The church and the priests
 - (c) The monarchs
 - (d) The common people
5. What does the word 'fallibility' mean?
 - (a) That every man is open to error
 - (b) Sensitivity
 - (c) The virtue of not making mistake
 - (d) That some diving power is responsible for determining the fate of the man
6. What do you mean by the 'sweat of his brow'?
 - (a) Very hard work
 - (b) The tiny droplets of sweat on the forehead
 - (c) The wrinkles visible on the forehead
 - (d) The sign of innocence
7. What does the policy of 'Laissez Faire' stand for?
 - (a) Individual freedom in the economic field
 - (b) State control over law and order in society
 - (c) Joint control of the means of production by the state and private enterprise
 - (d) Decontrol over law and order by the ruling class

8. Which of the following describes the writer?
 (a) Concerned (b) Unconcerned
 (c) Aggressive (d) Frustrated
9. Choose the correct synonym out of the four choices given.
Gospels
 (a) chit chat (b) a teaching or doctrine of a religious teacher
 (c) rumour (d) guidance
10. Choose the correct synonym out of the four choices given.
Vogue
 (a) uncertain (b) out-dated
 (c) the prevailing fashion or style (d) journey

Directions (Q. Nos. 11-15): Select the word that is spelt correctly.

11. (a) Paraphernalia (b) Paraphrenalia
 (c) Parapherenalia (d) Paraphrennalia
12. (a) Enterprenuer (b) Entrepreneur
 (c) Entrepenuur (d) Enteruepeur
13. (a) Onomaetopoeia (b) Onomoatopoeira
 (c) Onomatopoeia (d) Onomatapoeia
14. (a) Hemorrhage (b) Haemorrhage
 (c) Haemorrhage (d) Hemoorhage
15. (a) Dylexsia (b) Dyslexia
 (c) Dislexia (d) Dislecsia

Directions (Q. Nos. 16-25): Select the best option from the four alternatives given below and shade the appropriate answer in the space provided for it in the OMR answer sheet.

16. Unless the this office, I will not say anything.
 (a) left (b) did not leave
 (c) leaves (d) had left
17. I would help all the poor people.
 (a) If I am rich (b) If I was rich
 (c) If I were rich (d) In case I am rich
18. I the news an hour ago.
 (a) have heard (b) heard
 (c) was hearing (d) have been hearing
19. He spoke About his prospects.
 (a) consciously (b) conscientiously
 (c) confidentially (d) confidently
20. The boy is not interested in playing,?
 (a) doesn't he? (b) isn't he?
 (c) didn't he? (d) is he?

21. He told us that we should never live beyond means.
 (a) his (b) their
 (c) our (d) her
22. May I request you again to consider my case favourably.
 (a) to (b) onto
 (c) of (d) no proposition required
23. Known as devout and serious person, she also has sense of humour.
 (a) better (b) quick
 (c) good (d) beautiful
24. Galileo said, 'The Earth around the Sun'.
 (a) revolved (b) is revolving
 (c) revolves (d) is revolved
25. We our work before the guests arrived at our house.
 (a) shall finish (b) have finished
 (c) had finished (d) shall have finished

Directions (Q. Nos. 26-30) The sentences given in each question, when properly sequenced, form a coherent paragraph. Each sentence is labeled with a letter. Choose the most logical order of sentences from among the given choices to construct a coherent paragraph. Shade the appropriate answer in the space provided for it in the OMR sheet.

26. A : People who start up their own business typically come from two extreme backgrounds : One is the business family background and the other is a steady professional family background.
 B : Typically, people from different backgrounds face different kinds of basic problems.
 C : The people from both the backgrounds find it very difficult to establish and manage an enterprise.
 D : Starting up and managing a small business is no joke.
 (a) DBCA (b) BACD
 (c) DACB (d) CDAB
27. A : Venture capital is recommended as the ideal source of financing for a successfully small business.
 B : Several companies including start ups have been funded by dedicated venture funds during this decade.
 C : Despite this, an average Indian entrepreneur understands and appreciation of venture capital concept has been woefully inadequate.
 D : In the Indian context, though venture capital has been a relatively late entrant, it has already made a reasonable impact.
 (a) ABCD (b) ADBC
 (c) ACBD (d) ADCB
28. A : Progress in diagnosis, in preventive medicine and in treatment, both medicinal and surgical, has been rapid and breathe taking.
 B : Much in medicine which is not taken for granted was undreamt of even as recently as 20 yr ago.
 C : Presently small pox has been eradicated, poliomyelitis practically banished, tuberculosis has become curable and coronary artery disease surgically relievable.
 D : The dramatic surge in the field of molecular biology and research by immunologists and geneticists has succeeded in controlling parasitic diseases like malaria and river blindness that affect millions of people round the world.
 (a) BDCA (b) BACD
 (c) BCAD (d) BDAC

29. A : Instead, many deaths and injuries result from falling objects and the collapse of buildings, bridges and other structures.
 B : Earthquakes almost never kill people directly.
 C : Fire resulting from broken gas or power lines is another major danger during a quake.
 D : Spills of hazardous chemicals are also a concern during an earthquake.
 (a) CABD (b) DACB
 (c) DCAB (d) BACD
30. A : The Winchester or hard disk drives can store much more data than what can be stored on a floppy diskette.
 B : Hard disks come sealed and they cannot be removed or changed like floppy diskettes.
 C : Often floppy disk system is used in conjunction with the Winchester disk system
 D : This makes for an ideal system for secondary storage.
 (a) CABD (b) CBDA
 (c) BACD (d) ABCD

Directions (Q. Nos. 31-35): Given below are a few foreign language phrases, which are commonly used. Choose the correct meaning for each of the phrases and shade the appropriate answer in the space provided for it in the OMR sheet.

31. El-Dorado
 (a) An imaginary place (b) High altitude
 (c) A literary man (d) A country full of gold and precious stones
32. Quantum wnifactus
 (a) The amount of damage suffered (b) The amount of damage caused
 (c) The amount of damage paid (d) The amount of damage received
33. Corpus delicti
 (a) Fake evidence of an offence (b) Hearsay evidence of an offence
 (c) Lack of evidence of an offence (d) An evidence which constitute an offence
34. Vis-à-vis
 (a) Direct (b) Opposite
 (c) Face-to-Face (d) Agree
35. Carte blanche
 (a) Complete authority (b) Issue the warrant
 (c) No authority (d) Lack of authority

Directions (Q. Nos. 36-40): Choose the explanation that catches the spirit of the idiom given in each question.

36. To blaze a trail
 (a) To set on fire (b) To blow the trumpet
 (c) To initiate work in a movement (d) To be hopeful
37. A snake in the grass
 (a) A secret or hidden enemy (b) An unreliable person
 (c) Unforeseen happening (d) A dangerous enemy
38. Have too many irons in the fire
 (a) Engaged in too many enterprises at the same time
 (b) Facing too many problems at the same time
 (c) Said or done too many things at the same time
 (d) To incite the feeling amongst the people

39. A fair weather friend
 (a) A friend who is fair to us at all the times (b) A friend who deserts us in difficulties
 (c) A friend whom we love the most (d) A friend who loves us the most
40. A panacea
 (a) an injection that serves as a life line (b) a lecture full of precepts
 (c) a strong drug that induces sleep (d) a single cure for all diseases or troubles

Section II: Elementary Mathematics (Numerical Ability)

41. $\frac{2}{3}$ is a rational number whereas $\sqrt{2} / \sqrt{3}$ is
 (a) also a rational number (b) an irrational number
 (c) not a number (d) a natural periodic number
42. Greatest number which divides 926 and 2313, leaving 2 and 3 remainders, respectively, is
 (a) 52 (b) 54
 (c) 152 (d) 154
43. A single discount equivalent to a discount series 15% and 5% is
 (a) 32% (b) 20%
 (c) 10% (d) 8.5%
44. By selling a cycle for Rs. 2345, a student loses 19%. His cost price is nearly
 (a) Rs. 4000 (b) Rs. 5000
 (c) Rs. 3000 (d) Rs. 3500
45. Diagonals of a rhombus are 1 m and 1.5 m in lengths. The area of the rhombus is
 (a) 0.75 m^2 (b) 1.5 m^2
 (c) 1.5 m^2 (d) 0.375 m^2
46. An angle in a semi-circle is
 (a) π (b) $\pi / 4$
 (c) $\pi / 2$ (d) 2π
47. In a school for midday meal food is sufficient for 250 students for 33 days, if each student is given 125 g meals. 80 more students joined the school. If same amount of meal is given to each student, then the food will last for
 (a) 20 days (b) 40 days
 (c) 30 days (d) 25 days
48. In a school of 500 students, 102 students can read Hindi and Tamil both, 200 students can read only Hindi. The students who can read only Tamil are
 (a) 198 (b) 402
 (c) 302 (d) 300
49. The value of k for which $kx + 3y - k + 3 = 0$ and $12x + ky = k$, have infinite solutions, is
 (a) 0 (b) -6
 (c) 6 (d) 1

50. Table shows the daily expenditure on food of 25 households a locality Rs. 100-150 150-200 200-250 250-300 300-350
Households 4 5 12 2 2
The mean daily expenditure on food is
(a) Rs. 11.1 (b) Rs. 161
(c) Rs. 211 (d) Rs. 261
51. A box contains 24 marbles, some are green and others are blue. If a marble is drawn at random from the jar, the probability that it is green is $\frac{2}{3}$. The number of blue balls in the jar is
(a) 13 (b) 12
(c) 16 (d) 8
52. The population of a city is 250 thousand. It is increasing at the rate of 2% every year. The growth in the population after 2 yr is
(a) 2500 (b) 10000
(c) 252000 (d) 10100
53. If a point (x, y) in a OXY -plane is equidistant from $(-1, 1)$ and $(4, 3)$, then
(a) $10x + 4y = 23$ (b) $6x + 4y = 23$
(c) $-x + y = 7$ (d) $4x + 3y = 0$
54. Sum of first 15 multiples of 8 is
(a) 960 (b) 660
(c) 1200 (d) 1060
55. A rod of 2 cm diameter and 30 cm length is converted into a wire of 3 m length of uniform thickness. The diameter of the wire is
(a) $\frac{2}{10}$ cm (b) $\frac{2}{\sqrt{10}}$ cm
(c) $\frac{1}{\sqrt{10}}$ cm (d) $\frac{1}{10}$ cm
56. Two straight poles of unequal length stand upright on a ground. The length of the shorter pole is 10 m. A pole joins the top of the two vertical poles. The distance between the two tops is 5 m. The distance between the poles along the ground is 4 m. The area thus formed by the three poles with the ground is
(a) 52 meter² (b) 46 meter²
(c) 20 meter² (d) 50 meter²
57. Pipe A can fill a tank in 10 h and pipe B can fill the same tank in 12 h. Both the pipes are opened to fill the tank and after 3 h pipe A is closed. Pipe B will fill the remaining part of the tank in
(a) 5 h (b) 4 h
(c) 5 h 24 min (d) 3h
58. A ground 100×80 m² has, two cross roads in its middle. The road parallel to the length is 5 m wide and the other road is 4 m wide, both roads are perpendicular to each other. The cost of laying the bricks at the rate of Rs. 10 per m², on the roads, will be
(a) Rs. 7000 (b) Rs. 8000
(c) Rs. 9000 (d) Rs. 10000
59. If selling price of 10 articles is equal to cost price of 11 articles, then gain is
(a) 8% (b) 9%
(c) 8.5% (d) 10%

60. Angles of a quadrilateral are in the ratio 3 : 4 : 5 : 8. The smallest angle is
- (a) 20° (b) 54°
(c) 36° (d) 18°

Section III: General Knowledge and Current Affairs

61. The headquarter of European Union is situated in
- (a) England (b) Germany
(c) France (d) Belgium
62. India in 2008 successfully put Chandrayaan-1 into its initial orbit by
- (a) PSLV-C12 (b) PSLV-C11
(c) PSLV-14 (d) GSLV-D3
63. Vishwanathan Anand retained the World Chess Championship in 2012 by defeating Boris Gelfand. Mr. Gelfand belongs to
- (a) Israel (b) Russia
(c) Poland (d) USA
64. Kapilvastu Relics (fragments of Lord Buddha's bone), for the second time in 114 yr, recently travelled from India to
- (a) China (b) Sri Lanka
(c) Myanmar (d) Japan
65. Dr. Norman Borlaug is famous as father of the Green Revolution in 1960s. His initial goal was to create varieties of wheat adapted to the climate of
- (a) Mexico (b) India
(c) USA (d) China
66. A feature 'Bluetooth' now common in mobile phones, gets its name from a
- (a) Chinese 10th century king (b) UK Software Company
(c) Greek Goddess (d) Danish 10th century king
67. Which pair of states does not touch each other?
- (a) Meghalaya, Manipur (b) Chhattisgarh, Uttar Pradesh
(c) Rajasthan, Punjab (d) Jammu and Kashmir, Himachal Pradesh
68. Baglihar dam, is constructed on river
- (a) Ravi (b) Chenab
(c) Indus (d) Sutlej
69. Navjivan Trust was instituted with the objectives of propagating peaceful means of attaining third Swaraj, by
- (a) Mohan Das Karam Chand Gandhi (b) Lala Lajpat Rai
(c) Bal Gangadhar Tilak (d) Dr. Ambedkar
70. World Cup Football 2014 and Olympics 2016 will be held in
- (a) USA (b) Brazil
(c) Russia (d) South Africa

71. In 2012-13, India's target is to restrict the fiscal deficit to $x\%$ of the GDP, where x is
(a) 10 (b) 8.3
(c) 15 (d) 5.1
72. POSCO steel project to come up, but being strongly protested by the people is located in
(a) Chhattisgarh (b) Jharkhand
(c) Odisha (d) Andhra Pradesh
73. Bharat Ratna and Padma Awards in our country were instituted in the year
(a) 1952 (b) 1954
(c) 1962 (d) 1964
74. Who was crowned the Miss World 2012 on August 18, 2012?
(a) Ms Jessica Kahawaty (b) Ms Wenxia Yu
(c) Ms Vanya Mishra (d) Ms Sophie Moulds
75. Vishwaroopam is a 2013 Tamil spy thriller film written, directed and coproduced by _____, who also enacts the lead role.
(a) Prakash Raj (b) Rajni Kant
(c) Kamal Hassan (d) Chiranjeevi
76. Vijay Kumar, who clinched a Silver Medal in London Olympics in 2012 is associated with
(a) boxing (b) shooting
(c) weightlifting (d) wrestling
77. Sushil Kumar, who won a Silver Medal in London Olympics in 2012 is associated with
(a) shooting (b) boxing
(c) wrestling (d) weightlifting
78. How many medals did India win in London Olympics 2012?
(a) 3 (b) 4
(c) 5 (d) 6
79. The present Pope chosen in March 2013, hails from which country?
(a) Brazil (b) Mexico
(c) Argentina (d) Panama
80. The first person to set foot on the Moon on July 20, 1969 and, who died on August 25, 2012 was
(a) Nevil Armstrong (b) Neil Armstrong
(c) Gagan Narang (d) Michael Phelps
81. In which place, on February 21, 2013, two powerful explosive devices planted on bicycles had exploded in Andhra Pradesh?
(a) Dilrubnagar (b) Dilsukhnagar
(c) Dilkushnagar (d) Dilshaknagar
82. On which date Maha Kumbh Mela started in Prayag this year?
(a) January 14, 2013 (b) January 1, 2013
(c) January 26, 2013 (d) January 4, 2013

83. On which date 'International Women's Day' is celebrated?
(a) March 18 (b) March 8
(c) March 28 (d) February 18
84. Duration of which Five Year Plan was 2007-2012?
(a) X (b) XII
(c) IX (d) XI
85. As per census 2011, which state has the lowest sex ratio (877 : 1000)?
(a) Punjab (b) Haryana
(c) Uttar Pradesh (d) Bihar
86. Hugo Chavez, who died on March 5, 2013 after losing his battle with cancer, was the President, of which country?
(a) Argentina (b) Cuba
(c) Brazil (d) Venezuela
87. Carlos Slim, who tops the list of world's wealthiest people, for the fourth year in a row, belongs to which country?
(a) USA (b) England
(c) Mexico (d) Germany
88. In the name P Chidambaram, the present Union Finance Minister, what does 'P' stands for?
(a) Palghat (b) Pallakudi
(c) Palaniappan (d) Perumal
89. The earlier name of which city was New Amsterdam?
(a) Chicago (b) California
(c) Washington DC (d) New York City
90. The grant of Diwani of Bengal, Bihar and Orissa is associated with
(a) Nawab Shuja-ud-Daula (b) Nawab Asif-ud-Daula
(c) Shah Alam I (d) Shah Alam II
91. Where did Kuchipudi, an eminent dance form, originate?
(a) Kerala (b) Andhra Pradesh
(c) Uttar Pradesh (d) Tamil Nadu
92. Light Year is the unit of
(a) time (b) distance
(c) light (d) None of these
93. The leaning tower of Pisa does not fall because
(a) it is tapered at the top
(b) it covers a large base area
(c) its CG is inside the tower
(d) the vertical line passing through the CG of the tower falls within its base
94. 'Paradise Regained' was written by
(a) John Milton (b) Michel Angelo
(c) John Keats (d) Lord Byron

95. Which is the richest temple in India?
(a) Balaji temple of Tirupathi (b) Padmanabha Swamy temple of Thiruvananthapuram
(c) Shirdi Sai Baba temple (d) Jagannatha temple of Puri
96. Who founded the Red Cross?
(a) Henry Dunant (b) Alexander
(c) James Cook (d) Bismark
97. 'World Literacy Day' is celebrated on
(a) September 5 (b) September 6
(c) September 8 (d) None of these
98. South African Paralympics icon Oscar Pistorius has been accused of killing
(a) Julia Kamp (b) Reeve Steenkamp
(c) Pistorius Kamp (d) Shakeera Kamp
99. In the month of March, 2013 the Supreme Court of India issued a notice that the ambassador of the following country shall not leave India without the permission of the Supreme Court.
(a) Germany (b) Maldives
(c) Italy (d) Nepal
100. The Constitution (One Hundred Seventeenth Amendment) Bill, 2012 makes provisions regarding
(a) reservation in matters of promotions for Scheduled Castes and Scheduled Tribes
(b) reservation in matters of appointments for Scheduled Castes and Scheduled Tribes
(c) reservation in matters of appointments and promotions for Scheduled Castes and Scheduled Tribes
(d) None of the above
101. The number of High Courts in India is
(a) 18 (b) 24
(c) 21 (d) 28
102. The last British Emperor of India was
(a) King George I (b) King George III
(c) King George V (d) King George VI
103. Palaeolithic period is also known as
(a) Mesolithic age (b) Late stone age
(c) Old stone age (d) Neolithic age
104. Capital of India was transferred from Calcutta to Delhi in the year
(a) 1901 (b) 1911
(c) 1921 (d) 1922
105. The chairman of Fundamental Rights sub-committee of the Constituent Assembly was
(a) Dr. Rajendra Prasad (b) Dr. BR Ambedkar
(c) Pt. Jawaharhal Nehru (d) JB Kripalani
106. The Environment Protection Act was passed by the Parliament of India in the year
(a) 1976 (b) 1986
(c) 1996 (d) 2006

107. International Year of Biodiversity is/was/will be
(a) 2010 (b) 2011
(c) 2012 (d) 2014
108. The first Shaka king in India was
(a) Rudradaman (b) Menandar
(c) Maues (d) Damanrudra
109. Potential energy is described by the expression
(a) $PE = mgh$ (b) $PE = ngh$
(c) $PE = oph$ (d) $PE = pph$
110. Where was 16th NAM Summit held?
(a) Tehran (b) Mehran
(c) Turban (d) Bagdad

Section IV: Logical Reasoning

Direction (Q. Nos. 111-113): Answer the following questions based on the statements given below

- (i) There are 3 poles on each side of the road.
 - (ii) These six poles are labeled A, B, C, D, E and F
 - (iii) The poles are of different colours namely Golden, Silver, Metallic, Black, Bronze and White.
 - (iv) The poles are of different heights.
 - (v) E, the tallest pole, is exactly opposite to the Golden coloured pole.
 - (vi) The shortest pole is exactly opposite to the Metallic coloured pole.
 - (vii) F, the Black coloured pole, is located between A and D.
 - (viii) C, the Bronze coloured pole, is exactly opposite to A.
 - (ix) B, the Metallic coloured pole, is exactly opposite to F.
 - (x) A, the White coloured pole, is taller than C but shorter than D and B.
111. What is the colour of the pole diagonally opposite to the Bronze coloured pole?
- (a) White
 - (b) Silver
 - (c) Metallic
 - (d) Golden
112. Which is the second tallest pole?
- (a) A
 - (b) D
 - (c) B
 - (d) Cannot be determined
113. Which if the colour of the tallest pole?
- (a) Golden
 - (b) Silver
 - (c) Bronze
 - (d) None of these

Directions (Q. Nos. 114-115): Answer the questions on the basis of the information given below.

The head of a newly formed Government desires to appoint five of the six elected ministers P, Q, R, S, T and U to portfolios of Foreign, Industry and Commerce, Agriculture, Rural Development and Human Resources. U does not want any portfolio if S gets one of the five. R wants either Foreign or Human Resources or no portfolio. Q says that if S gets industry and Commerce or Rural Development then she must get the other one. T insists on a portfolio if P gets one.

114. Which of the following is a valid assignment?
- (a) P-Foreign, Q-Industry and Commerce, R- Agriculture, S-Rural Development, THuman Resources
 - (b) R-Foreign, S-Industry and Commerce, P-Agriculture, Q-Rural Development, THuman Resources
 - (c) P-Foreign, Q-Industry and Commerce, T-Agriculture, S-Rural Development, UHuman Resources
 - (d) Q-Foreign, U-Industry and Commerce T-Agriculture, R-Rural Development, PHuman Resources
115. If P gets Foreign and R gets Human Resources, then which is not a valid assignment of Agriculture and Rural Development?
- (a) S-Agriculture, Q-Rural Development
 - (b) U-Agriculture, Q-Rural Development
 - (c) Q-Agriculture, T- Rural Development
 - (d) Q-Agriculture, S-Rural Development

Directions (Q. Nos. 116-120) In each of the following questions, a related pair of words is followed questions, a related pair of words is followed by four pairs of words or phrases. Select the pair that best expresses a relationship similar to the one expressed in the question pair.

116. Action : Reaction
- (a) Introvert : Extrovert
 - (b) Assail : Defend
 - (c) Diseased : Treatment
 - (d) Death : Rebirth
117. Sorrow : Misery
- (a) Love : Obsession
 - (b) Amity : Harmony
 - (c) Happiness : Joy
 - (d) Enemy : Hatred

118. Drama : Audience
 (a) Brawl : Vagabonds (b) Game : Spectator
 (c) Art : Critic (d) Movie : Actors
119. Nuts : Bolts
 (a) Nitty : Gritty (b) Bare : Feet
 (c) Naked : Clothes (d) Hard : Soft
120. Book : Author
 (a) Rain : Flood (b) Light : Switch
 (c) Symphony : Composer (d) Song : Music

Directions (Q. Nos. 121-125) Each question contains a statement on relationship and a question regarding relationship based on the statement. Select the correct option.

121. Moni is daughter of Sheela. Sheela is wife of my wife's brother. How Moni is related to my wife?
 (a) Cousin (b) Niece
 (c) Sister (d) Sister-in-law
122. Annu is daughter of my mother's brother Abahi. Pari is granddaughter of my mother. Pari should call Annu as
 (a) maternal aunt (b) sister
 (c) cousin (d) niece
123. Markandey is Rajiv's mother's father. Markandey has three brothers. One of them has grandson Abhi. Rajan is son of Abhi. Rajan is related to Rajiv as
 (a) brother (b) nephew
 (c) cousin (d) uncle
124. Deepak said to Nitin, "That boy playing with the football is the younger of the two brothers of the daughter of my father's wife". How is the boy playing football related to Deepak?
 (a) Son (b) Brother
 (c) Cousin (d) Brother-in-law
125. Pointing to a woman in the photograph, Rajesh said, 'The only daughter of her grandfather is my wife'. How is Rajesh related to that woman?
 (a) Uncle (b) Father
 (c) Maternal Uncle (d) Brother

Directions (Q. Nos. 126-130) Read the information given below to answer the questions.

- (i) Kareena's dieting schedule consists of having only one fruit on a given day of the week.
 (ii) Dietician has prescribed banana, papaya, pomegranate, apple and grape from Sunday to Friday, one day being a fasting day. Kareena cannot eat any fruit on Saturday.
 (iii) Pomegranate day is neither on the first day nor on the last day but earlier than the papaya day.
 (iv) Apple day is on the immediate next day of papaya day.
 (v) Banana day is on the immediate previous day of the fasting day.
 (vi) Apple day and grape day must have a gap of two days between them.
 (vii) Grape day is the day immediately following the fasting day.
126. Which of the following is the fasting day?
 (a) Monday (b) Tuesday
 (c) Wednesday (d) Thursday

127. Banana day and apple day have a gap of how many days between them?
 (a) One (b) Two
 (c) Three (d) Four
128. Which day is grape day?
 (a) Monday (b) Tuesday
 (c) Thursday (d) Wednesday
129. Which day is pomegranate day?
 (a) Sunday (b) Monday
 (c) Thursday (d) Wednesday
130. Which of the following is the correct statement?
 (a) Apple day is after papaya day (b) Banana day is on Wednesday
 (c) Fasting day is on Tuesday (d) Papaya day is earlier than banana day

Directions (Q. Nos. 131-135): Each question contains one statement and two courses of action I and II. Assuming the statements to be true, decide which of the two courses of action most logically follows.

Codes

- (a) If only I follows (b) If only II follows
 (c) If either I or II follows (d) If neither I nor II follows
131. **Statement:** Indian children are very talented but are instead weak in Science and Mathematics.
Courses of Action: I. Teaching and textbooks are not available in mother language.
 II. Education based on experiments in both the subjects is lacking.
132. **Statement:** Despite of child labour laws, children can be seen working in hotels, shops, houses very frequently.
Courses of Action: (I) The government should not make such laws which cannot be enforced.
 (II) A proper education system for the primary level particularly for lower caste community may eradicate this problem.
133. **Statement:** Kyoto protocol on environment is signed by almost every country of the world.
Courses of Action: I. As a result air, water and soil pollution have come down.
 II. Increasing production of automobiles, refrigerators and fertilizers do not affect our environment.
134. **Statement:** School dropout rate is very high in the rural areas a children support their parents in income earning activities.
Courses of Action: I. Public awareness programme on primary education should be expanded immediately to educate parents.
 II. Compensation is not a remedy.
135. **Statement:** Smoking is one of those human weaknesses which tend to test the will power of the smoker of the edge.
Courses of Action: I. It is very difficult for the smoker to give up smoking even if they want to do so.
 II. Human beings have other weaknesses as well.

Directions (Q. Nos. 136-140): Complete the series by choosing the correct option.

136. 0, 1, 1, 2, 3, 5, 8, 13, 21, ?
 (a) 34 (b) 35
 (c) 33 (d) 36

137. A-10, E-15, I-20, M-25, ...
 (a) Q-5 (b) Q-30
 (c) P-30 (d) R – 30
138. 17,30,74,150, ?, 606
 (a) 250 (b) 303
 (c) 300 (d) 302
139. 2, 1, 4, 3, 6, 5, 8,?
 (a) 9 (b) 10
 (c) 7 (d) 8
140. 1, 4, 27, 256,?
 (a) 625 (b) 3125
 (c) 3025 (d) 1225

Directions (Q. Nos. 141-145): In each question below are given two statements numbered I and II. You have to take the two given statements as true even, if they seem to be at variance with commonly known facts. Read all the conclusions and then decide which of the given conclusions logically follow from the given statements, disregarding commonly known facts.

141. **Statements:** I. All vegetables have gravy. II. All lunch has vegetable.
 (a) All lunch has gravy (b) All gravy has lunch
 (c) Both (a) and (b) (d) None of these
142. **Statements:** I. Karan Johar is a good director II. Directors are intelligent.
 (a) All intelligent are directors (b) Karan Johan is intelligent
 (c) Both (a) and (b) (d) None of the above
143. **Statements:** I. Some blues are green. II. Pink is green.
 (a) Some blue is pink (b) Some green is pink
 (c) Either (a) or (b) follows (d) Some pinks are blues
144. **Statements:** I. All boys are tall. II. All Punjabi are tall.
 (a) All boys are Punjabi (b) Some boys are Punjabi
 (c) Both of (a) and (b) (d) None of the above
145. **Statements:** I. All girls go to the collage. II. Rina does not go to the collage.
 (a) Rina is not a girl (b) Going to college is not essential to be a girl
 (c) Rina is a girl (d) None of the above

Directions (Q. Nos. 146-150) Read the information given below to answer the questions.

A, B, C, D, E, F, G and H want to have a dinner on a round table and they have worked out the following seating arrangements.

- (i) A will sit beside C
- (ii) H will sit beside A
- (iii) C will sit beside E
- (iv) F will sit beside H
- (v) E will sit beside G
- (vi) D will sit beside F
- (vii) G will beside B
- (viii) B will sit beside D

146. Which of the following is wrong?
(a) A will be to the immediate right to C
(b) D will be to the immediate left of B
(c) F will be to the immediate right of A
(d) F will be to the immediate left of D
147. Which of the following is correct?
(a) B will be to the immediate left of D
(b) H will be to the immediate right of A
(c) C will be to the immediate right of F
(d) B will be to the immediate left of H
148. A and F will become neighbours if
(a) B agrees to change her sitting position
(b) C agrees to changes her sitting position
(c) G agrees to change her sitting position
(d) H agrees to change her sitting position
149. During sitting
(a) A will be directly facing C
(b) B will be directly facing C
(c) A will be directly facing B
(d) B will be directly facing D
150. H will be sitting between
(a) C and B
(b) A and F
(c) D and G
(d) E and G

Section V: Legal Aptitude

Directions (Q. Nos. 151-200): This section consists of fifty (50) questions. Each question consists of legal propositions/principles (hereinafter referred to as 'principle') and facts. These principles have to be applied in the given facts to arrive at the most reasonable conclusion. Such principles may or may not be true in the real sense, yet you have to conclusively assume them to be true for the purposes of this section. In other words, in answering the following questions, you must not rely on any principles except the principles that are given here in below for every question. Further you must not assume any facts other than those stated in the question. The objective of this section is to test your interest towards study of law, research aptitude and problem solving ability even if the 'most reasonable conclusion' arrived at may be unacceptable for any other reason. It is not the objective of this section to test your knowledge of law.

151. **Principle:** When an offer is accepted by a person to whom it is made, it becomes a promise. But this promise will become legally binding only when the acceptance of the offer is unconditional.
Facts: Ram makes an offer to sell his house to Shyam for Rs. 50 lakh. Shyam accepts this offer but wants to pay the price of the house in five quarterly instalments. Ram does not agree to it. Thereafter Shyam agrees to pay the price of the house in the way as originally desired by Ram. But Ram does not reply to it. Can Shyam compel Ram to sell his house to him?
- (a) Shyam can compel Ram to sell his house because Shyam ultimately agrees to pay the price as originally desired by Ram
 - (b) Shyam can compel Ram to sell his house because Shyam in the first instance substantially complied with the desire of Ram
 - (c) Shyam can compel Ram to sell his house because Ram's offer does not exclude the payment of price in instalments
 - (d) Shyam cannot compel Ram to sell his house because Shyam imposes a new condition about payment of price of the house while accepting the offer which is not ultimately accepted by Ram
152. **Principle:** Generally an agreement without consideration is not valid. Therefore, in order to make a valid agreement, some consideration which may have some value in the eyes of law, is essentially required.
Facts: William has an old car of which he makes seldom use. He voluntarily enters into an agreement with Smith to sell this car for rupees ten thousand. Thereafter one Anson approaches William and offers to buy that car for rupees 1 lakh as the car was one which Anson has been searching for long. Now, William wants to cancel his agreement with Smith and refuses to deliver the car to him saying that consideration price for the car promised by Smith is negligible and therefore, agreement with him cannot be said to be valid one.
- (a) William can cancel his agreement with Smith as the consideration involved in that is really inadequate
 - (b) William cannot cancel his agreement with Smith as the sale of car for rupees ten thousand was voluntary and this price has some value in the eyes of law
 - (c) William can cancel his agreement with Smith as he was ignorant about the value/price of the car for which it could be sold
 - (d) William can cancel his agreement with Smith as he is entitled to get full market value/price of his car
153. **Principle:** In order to be eligible to appear in the semester examination, a student is required to attend, under all circumstances, atleast 70% of the total classes held in that semester as per University rules.
Facts: Anand, an economically poor but a very brilliant student of LLB final semester, while going to his university by cycle received some leg injuries in road accident. Consequently Anand could not attend his classes for one week as he was advised rest his doctor for that period. Due to this absence from the university, Anand failed to have 70% attendance essential to appear in the examination and therefore, he was debarred from appearing in the examination by the university authorities. Anand challenges this decision in the court of law.
- (a) Anand will succeed in the court of law as the accident was beyond his control
 - (b) Anand will definitely get favour of the court on humanitarian ground as he comes from a economically poor family and may not afford to take readmission
 - (c) Anand will not succeed as he could very easily fulfil eligibility criteria for appearing in the examination by being reasonably regular in the class throughout the semester

- (d) Anand will succeed as requirement of 70% attendance may be declared arbitrary and therefore, unreasonable by the court of law
154. **Principle:** A seller of goods cannot transfer better rights than he himself possesses in the goods sold to buyer.
Facts: Komal leaves his watch by mistake on a seat in the park. Sonal finds that watch and immediately sells the same for good price to Monal who without inquiring whether Sonal is its owner or not. Komal later on claims that watch from Monal decide whether Komal can succeed.
- Komal cannot succeed as Monal has paid good price of the watch
 - Komal cannot succeed as Monal is unaware of the fact that Sonal is not its owner
 - Komal cannot succeed as it was his carelessness and nothing else which enables Sonal to sell the watch to Monal
 - Komal cannot succeed as Sonal is merely finder of the watch and therefore, cannot transfer ownership rights thereon to Monal
155. **Principle:** All citizens shall have the Fundamental Right to carry on any occupation, trade or business. But reasonable restrictions on the exercise of such rights can be imposed by law in the interest of the general public.
Facts: A large number of persons had been carrying on the business of dyeing and printing in Rajkot area for the last 25 yr providing employment to about 30000 families. From these business places untreated dirty water was being discharged on the roads thereby causing damage to the public health. A notice, therefore, was given to close this business till necessary measures to protect public health as provided under the environmental statutes were taken by those businessmen.
- Notice cannot be justified as it will cause loss of employment to 30000 families
 - Notice cannot be justified as it amounts to violation of the Fundamental Right of the persons who have been carrying on the business for the last 25 yr
 - The notice cannot be justified on the ground of damage to public health as the persons in that area have been voluntarily residing for long and have become used to that environment
 - The notice can be justified as the right to business is not absolute and reasonable restriction can be imposed by law in the interest of the public
156. **Principle:** A contract cannot be enforced by or against a person who is not a party to it. However, where some benefit is conferred on third party by the contract itself, there third party can allowed to enforce that contract to get such benefit.
Facts: Dinesh is liable to pay Rs. 50000 to Suresh. In order to discharge this liability Dinesh enters into a contract with Ramesh by which Dinesh sells his car to Ramesh for Rs. 1 lakh Ramesh takes the delivery of the car and promises/assures to pay its price at the earliest. Dinesh separately informs Suresh about this contract for his satisfaction. Ramesh fails to pay the car's price. Suresh wants to join Dinesh in filing suit against Ramesh for the recovery of price of the car. Whether Suresh is entitled to do so?
- Suresh is entitled to do so because the contract was made for his benefit
 - Suresh is entitled to do so because Dinesh is liable to him and discharge of this liability depends upon the payment of the price of the car by Ramesh
 - Suresh is not entitled to do so because liability of Dinesh does not depend upon any assurance of Ramesh
 - Suresh is not entitled to do so because he is not a party to the contract between Dinesh and Ramesh
157. **Principle:** If a contract is made by post between two persons living in two different cities, then the contract is said to be completed as soon as the letter of acceptance is properly posted and the place of completion of the contract is that city where acceptance is posted. It is worth mentioning here that in every contract there is always an offer from one party and the acceptance of the offer from the other party.
Facts: Sani, a resident of Patna, gives an offer by post to sell his house for Rs. 25 lakh to Hani, a resident of Allahabad. This offer letter is posted on 1st January, 2013 from Patna and reaches Allahabad on 7th January, 2013. Hani accepts this offer and posts the letter of acceptance on 8th January, 2013 from Allahabad which reaches Patna on 16th January, 2013. But Sani presuming that Hani is not interested in accepting his offer, sells his house to Gani at same price on 15th

of January, 2013. Hani files a suit against Sani for the breach of contract in the competent court of Allahabad. Whether Hani will succeed?

- (a) Hani cannot succeed as Sani cannot be compelled by law to wait for the answer from Hani for an indefinite period of time
- (b) Hani cannot succeed as he could use some other effective and speedy mode for communicating his acceptance in minimum possible time
- (c) Hani can succeed as he properly posted the letter of acceptance and the delay was beyond his control
- (d) Hani can succeed as contract became complete in the eyes of law on the date of posting the letter of acceptance

158. **Principle:** He, who goes to the court of law to seek justice, must come with clean hands.

Facts: P enters into a contract with S under which S has to construct a house for P and has to complete the same within one year from the date of the contract. This contract includes two very important terms. According to first term, if there is price hike of the materials to be used in the construction, then the escalation charges at a particular rate shall be payable by P to S. According to second term, if the construction of the house is not completed within the period prescribed for it, then S will have to pay penalty at a particular rate to P. Before the completion of the construction work the workers of S go on strike and strike continues up to three months even after the expiry of one year. After that period workers return and the construction work again starts. During the last three months period of strike there was a considerable rise in the price of the building material. S claimed escalation cost from P, P did not agree to it. S filed a suit in the court of law either to order the payment of the price of the building material on the basis of escalated price or to allow him to stop the work without incurring any penal liability towards P.

- (a) S will succeed as strike by his workers was unexpected and beyond his control
- (b) S can succeed as there is an escalation clause in the contract
- (c) S cannot succeed as he has failed to complete the construction work in time and strike can not be treated as a valid excuse for delay in work
- (d) S can succeed, if he pays penalty to P for delay

159. **Principle:** If the object of an agreement is or becomes lawful or immoral or opposed to public policy in the eyes of law, then the courts will not enforce such agreements. Law generally prohibits child labour.

Facts: P enters into an agreement with T, by which P has to let his house to T for two years and T has to pay Rs. 20000.00 per month to P as rent. T starts a child care centre in that house. But after some time in order to earn some money for the maintenance of the centre, T starts sending the children of the centre on the rotation basis to work for four hour a day in some nearby chemical and hazardous factories. When P comes to know about this new development, he asks T either to stop the children from working in factories or to leave his house immediately. T neither agrees to leave the house nor to stop the children from working in the factories. P files a suit in the court of law of appropriate relief/action.

- (a) P cannot succeed as the agreement was for the two years and it cannot be terminated before the expiry of that period.
- (b) P cannot succeed as the object at the time of making of the agreement was not clear
- (c) P will succeed as the object of the agreement has become unlawful
- (d) P will not succeed, if T agrees to share the wages of the children with P

160. **Principle:** Whosoever by his act or omission causes environmental pollution shall be held liable for any loss caused by such pollution. It shall be no defence in such cases that all due diligence or reasonable care was taken while carrying out the act or omission in question.

Facts: Hari is carrying on a chemical and fertilizer industry near a bank of a river. In order to prevent and control any kind of harm to the environment, suitable waste treatment and disposal plants were installed in the factory. Due to some sudden mechanical/ technical problem, these plants ceased to work properly and therefore, caused environmental pollution, which ultimately caused substantial harm to the environment and to the people living around the factory. Victims of such pollution file a suit for suitable remedy.

- (a) Victims cannot succeed as necessary precautions to prevent any harm were taken by Hari

- (b) Victims cannot succeed as the mechanical/technical problem was sudden and therefore, beyond the control of Hari
 - (c) Victims can succeed as it is the duty of Hari to see that no harm is caused to the environment/people due to his activity under any circumstances
 - (d) Victims could succeed, if treatment/disposal plant were not installed in the factory
161. **Principle:** If a person transfers movable or immovable property with its full ownership and without any consideration to some other person, then it is called a gift.
Facts: S, who has no child of his own, makes a gift of his house worth Rs. 25 lakh to his nephew R. After completing all the legal formalities required for a valid gift, S says to R that in case of need R will provide that house to S for use without any questions. R does not react to it. After one year of this gift, S really needs that house and request R to make the house available to him, but R refuses to do so.
- (a) R cannot refuse as he got the house without paying any consideration for that
 - (b) R cannot refuse as S is without children
 - (c) R can refuse as he has become full owner of the house
 - (d) R can refuse as he himself may be in need of that house
162. **Principle:** An agreement to do an act impossible in itself cannot be enforced by a court of law.
Facts: Ramesh agrees with his girl friend Shilpa to pluck stars from the sky through his extraordinary will power and bring them down on Earth for her within a week. After the expiry of one week, Shilpa filed a suit for damages against Ramesh, for the breach of contract as Ramesh failed to perform his promise.
- (a) Shilpa can succeed in getting damages as Ramesh has decided her
 - (b) Ramesh cannot be held liable as he honestly believes that his love for Shilpa is true and therefore, he will succeed in his endeavour
 - (c) The court cannot entertain suits as the act promised under the agreement is impossible in itself
 - (d) Ramesh can be held liable for making an absurd promise
163. **Principle:** An agreement may be oral or written. However, if a law specifically required that an agreement must be in writing, then the agreement must be in writing. A law specifically requires that the agreements relating to transfer of the copyright in novel between an author of a novel and the producer of a motion picture must be in writing.
Facts: The author of a novel, *Love at Lost Sight*, had several rounds of discussion with a producer of motion picture regarding making of a motion picture based on *Love at Lost Sight*. During the last discussion, they decided to make a motion picture on *Love at Lost Sight*. The producer made a motion picture on *Love at Lost Sight* after making a payment of Rs. 1000000 (ten Lakh only) in cash to the author, who happily accepted this amount as full and final payment. Later on, on the advice of his lawyer, who author brought a case in a court of law against the producer on the ground that there is no written agreement between the producer and him.
- (a) The author is likely to succeed in the case as the agreement is not in accordance with the law
 - (b) The author cannot succeed in the case as he has given his consent to the agreement
 - (c) The author is not likely to succeed in the case because he has already accepted the amount of Rs. 1000000 as full and final payment
 - (d) The author can succeed in the case as the consideration is not adequate
164. **Principle:** A person is said to be of sound mind for the purpose of making a contract if, at the time, when he makes it, he is capable of understanding it and of forming a rational judgment as to its effect upon his interest.
Facts: X, who is usually of sound mind but occasionally of unsound mind enters into a contract with Y, when he (X) is of unsound mind. Y came to know about his fact afterwards and now wants to file a suit against X.
- (a) X cannot enter into contract because he is of unsound mind, when he entered into contract
 - (b) X can enter into contract but the burden is on the other party to prove that he was of unsound mind at the time of contract
 - (c) X can either into contract but the burden is on X to prove that he was of sound mind at the time of contract
 - (d) None of the above

165. **Principle:** Whosoever commits any act forbidden by the Indian Penal Code with a view to obtain the consent of any person to enter into an agreement, he cannot get the agreement enforced by law but the person, whose consent has been so obtained may get the agreement enforced by law. The Indian Penal Code defines various offences and prescribes punishments therefore.
- Facts:** A obtains the consent of B to enter into an agreement by an act amounting to criminal intimidation under the Indian Penal Code. A brings a case against B for performance of agreement
- (a) A will succeed in the case (b) A may succeed in the case
(c) B will succeed in the case (d) B will not succeed in the case
166. **Principle:** A contract between the father and his son is a contract of utmost good faith. In such a type of contract law presumes that at the time of entering into the contract the father was in a position to dominate the will of his son. Where one of the parties was in position to dominate the will of the party, the contract is enforceable only at the option of the party whose will was so dominated.
- Facts:** Ram had advanced a sum of Rs. 10000 to his minor son Shyam. When Shyam became major, his father Ram misused his parental position and entered into an agreement with Shyam and obtained a bond from him for a sum of Rs. 30000 in respect of the advance. Whether this agreement is enforceable?
- (a) The agreement is enforceable against Shyam only for Rs. 10000, the actual amount of money advanced to him
(b) The agreement is enforceable against Shyam for Rs. 30000 because he has signed the bond
(c) The agreement is enforceable against Shyam because he was major at the time of agreement
(d) The agreement is not enforceable against Shyam because Ram has misused his position as father to obtain an unfair advantage
167. **Principle:** When at the desire of one person, any other person has done or abstained from doing something, such act or abstinence or promise is called a consideration for the promise. Only a promise coupled with consideration is enforceable by law.
- Facts:** X, the uncle of Y, made a promise to pay him an amount of Rs. 10000 as reward, if Y quits smoking and drinking within one year. X also deposited the above mentioned amount in a bank and informed Y that the said amount will be paid to him, if he quits smoking and drinking within one year. Within a period of six months of making the promise X died. After the expiry of one year of making the promise by X, Y made a request to the legal heirs of X demanding the promised money. The legal heirs of X declined the request of Y.
- (a) The promise of X to Y enforceable by law because Y has quit smoking and drinking
(b) The promise of X to Y is not enforceable by law because Y has benefitted by quitting smoking and drinking
(c) The promise of X to Y is enforceable by law because the amount of Rs. 10000 has been deposited in a bank
(d) The promise of X to Y is enforceable by law because X has died within a period of six months of making the promise
168. **Principle:** 'Work' means literary work, artistic work, dramatic work, musical work, cinematographic film and sound recording but does not include acting in a cinematographic film. Only the works, as enumerated above, can be protected under copyright law.
- Facts:** A very famous actor acted in a cinematographic film. The actor was also the producer and director of cinematographic film.
- (a) The acting of the actor can be protected under copyright law
(b) The acting of the actor can be protected under copyright law only as an artistic work
(c) The acting of the actor cannot be protected under copyright law
(d) The acting of the actor cannot be protected under copyright law as a cinematographic film

169. **Principle:** In case where the government is a party, the government shall be first owner of the copyright in the work unless there is an agreement to the contrary.
Facts: The Government of the State of X entered into an agreement with a retired professor of Botany. The professor agreed to write a text book on Botany. The government agreed to pay a sum of Rs. 10 lakh to the professor for this work.
- (a) The Government of the State of X shall be first owner of copyright in the text book
 - (b) The professor shall be first owner of copyright in the text book
 - (c) Both the Government of the State of X and the professor shall be the joint owners of copyright in the text book
 - (d) The professor shall be first owner of copyright in the text book only, if he refuses to accept the amount of Rs. 10 Lakh from the government
170. **Principle:** Licence is an agreement whereby the owner of the copyright agrees to grant an interest in the copyright to the licensee. Assignment is an agreement whereby the owner of the copyright transfers all the property rights to the assignee. Property right is a bundle of rights consisting of right to possess, right to use, right to alienate and the right to exclude others.
Facts: An owner of copyright in a cinematographic film enters into an agreement with B, a film distributor. B agrees to distribute the film only in Mumbai. A also enters into many such agreements with other distributors for distribution of his film in other cities.
- (a) The agreement between A and B is more in the nature of assignment than in the nature of licence
 - (b) The agreement between A and B is more in the nature of licence than in the nature of assignment
 - (c) The agreement between A and B is both in the nature of assignment and licence
 - (d) The agreement between A and B is neither in the nature of assignment nor in the nature of licence
171. **Principle:** Qui facit per alium facit per se, *i.e.*, he who does things through others does it himself.
Facts: Nisha, the owner of a car, asked her friend Saurabh to take her car and drive the same to her office. As the car was near her office, it hit a pedestrian Srikant on account of Saurabh's negligent driving and injured him seriously. Now, Srikant files a suit for damages against Nisha.
- (a) Nisha is not liable as it was the negligence of Saurabh
 - (b) Saurabh is solely liable as Nisha was not driving the car
 - (c) Nisha is liable as Saurabh was driving under her authority and for her purpose
 - (d) Saurabh will be exempted from liability under the principle of inevitable accident
172. **Principle:** Words describing quality of things cannot be registered as trade mark. However, such words may be registered as trade mark, if they acquire a secondary meaning. Words acquire secondary meaning when people start associating the descriptive words with a person specific.
Facts: A hatchery located in Raipur is owned by X. X has been using the slogan 'new laid eggs sold here, since 1970 to describe the quality of eggs sold in his hatchery. Over a period of time because of continuous use of this slogan, people started associating this slogan with X. X filed an application for registration of the words 'new laid eggs' as trade mark in the year 1970.
- (a) The words will be registered as trade mark
 - (b) The words will not be registered as trade mark
 - (c) The words may be registered as trade mark
 - (d) The words may not be registered as trade mark
173. **Principle:** Whoever takes away anything from the land of any person without that person's consent is said to commit theft. A thing so long as it is attached to the earth is not the subject of theft but it becomes capable of being the subject of theft as soon as it is severed from the Earth.
Facts: Y cuts down a tree standing on the land of X with the intention of dishonestly taking the tree out of X's possession without the consent of X. But Y is yet to take away the tree out of X's possession.
- (a) Y has committed theft as soon as he came to the land of X

- (b) Y has committed theft as soon as the tree has been completely cut down by him
- (c) Y has committed theft as soon as he has started cutting down the tree
- (d) Y has not committed theft because he is yet to take away the tree out of X's possession

174. **Principle:** Res ipsa loquitur *i.e.*, the thing speaks for itself.

Facts: Seema got herself operated for the removal of her uterus in the defendant's hospital, as there was diagnosed to be a cyst in one of her ovaries. Due the negligence of the surgeon, who performed the operation, abdominal pack was left in her abdomen. The same was removed by a second surgery.

- (a) Surgeon cannot be held responsible because it is merely a human error
- (b) Surgeon can be held responsible but Seema will have to prove in the court of law that the surgeon was grossly negligent
- (c) Surgeon will be responsible and Seema need not to prove surgeon's negligence because presence of abdominal pack in her abdomen is sufficient proof therefore
- (d) None of the above

175. **Principle:** Whoever takes away with him any minor person less than sixteen years of age, if a male or less than eighteen years of age, if a female out of the keeping of parents of such minor person without the consent of such parent, is said to kidnap such minor person.

Facts: A female born on January 01, 1995 got admitted to an undergraduate program of a reputed university on July 01, 2012. She became friendly with one of the boys, born on June 01, 1994, of her class. The boy and the girl decided to marry. The parents of the boy agreed but the family of the girl did not agree. On December 15, 2012 the girl made a call from her Blackberry to the boy. The girl told the boy to come in his car at a particular place and time. The boy reached the stipulated place before the stipulated time. He waited there for about half an hour. The girl reached the stipulated place. She opened the door of the car and sat beside the boy who was on the driving seat. Without exchanging any pleasantries, the boy drove the car to an unknown place. The father of the girl lodged an FIR in the nearest police station on January 20, 2013.

- (a) The boy has committed the offence of kidnapping
- (b) The boy has not committed the offence of kidnapping.
- (c) The boy has not committed the offence of kidnapping for there is a delay in filing the FIR
- (d) The boy has not committed the offence of kidnapping because the girl was his classmate

176. **Principle:** Whoever voluntarily has carnal intercourse against the order of nature with any man, woman or animal shall be punished.

Facts: Two adult men were found engaged in carnal intercourse by the police. The police arrested the men and produced them before the court.

- (a) Court will punish the police officer who arrested the men
- (b) Court will not punish the men for they were adults
- (c) Court will punish the men
- (d) Court may be requested to declare the law unconstitutional

177. **Principle:** Wherever the causing of a certain effect or an attempt to cause that effect, by an act or by an omission, is an offence, it is to be understood that the causing of that effect partly by an act and partly by an omission is the same offence.

Facts: A intentionally omitted to give food to his father. He also used to beat his father. Consequently A's father died.

- (a) A did not commit any offence
- (b) A committed only the offence of omitting to give food to his father
- (c) A committed only the offence of beating of his father
- (d) A committed the offence of killing of his father

178. **Principle:** Nothing is an offence which is done by a child under seven years of age.
Facts: A child born on January 01, 2005 killed another child B on December 30, 2011.
(a) A has committed no offence
(b) A has committed the offence as it is heinous crime
(c) Killing of one child by another child is not an offence
(d) A has not committed the offence for on the date of killing of B, A was a minor
179. **Principle:** A pact, other than a pact to commit suicide, to suffer any harm is not an offence, provided the age of the person who has given his consent to suffer harm is above eighteen years.
Facts: A enters into a pact with B, a boy of less than 18 yr of age, to fence with each other for amusement. They agreed to suffer any harm which, in the course of such fencing, may be caused without foul play.
(a) A, while playing fairly, hurts B, A commits no offence
(b) A, while playing only unfairly, hurts B, A commits an offence
(c) A, while playing fairly, hurts B, A commits an offence
(d) A, while playing unfairly, hurts B, A commits no offence
180. **Principle:** When an act, which would otherwise be an offence, is not that offence by reason of the youth, the want of maturity of understanding, the unsoundness of mind or the intoxication of the person doing that act, every person has the same right of private defence against that act, which he would have if the act were that offence. Nothing is an offence which is done in the exercise of the right of private defence.
Facts: A, under the influence of madness, attempts to kill B. B in order to save his life causes grievous hurt to A.
(a) A has committed an offence
(b) A has not committed an offence
(c) B has committed an offence
(d) B has not committed any offence
181. **Principle:** Mere silence as to facts likely to affect the decision of a person to enter into a contract does not amount to fraud, unless his silence is in itself equivalent to speech.
Facts: A sells to B a horse which A knows to be of unsound mind. B says to A that if A does not say anything about the state of mind of horse, then B shall presume that the horse is of sound mind. A says nothing to B about the mental condition of horse.
(a) A has committed fraud
(b) A has committed misrepresentation
(c) There cannot be a fraud because A says nothing about the mental condition of the horse
(d) There cannot be a fraud because B did not ask A whether the horse is of sound mind
182. **Principle:** Whoever by words, either spoken or written brings or attempts to bring into hatred or contempt or excites or attempts to excite disaffection towards the government established by law in India shall be punished. However, comments expressing disapprobation of the administrative or other action of the government without exciting or attempting to excite hatred, contempt or disaffection, do not constitute an offence.
Facts: A renowned professor of Economics wrote a critical comment on the economic policies of the Government of India in a National Daily. This piece of writing generated academic debate not only in the print media but also on television and internet. A student of law asked the fellow Indians on a social networking website to assemble at a particular place for peaceful and silent demonstration against the said economic policies on a stipulated date and time. The crowd assembled at that venue and started shouting antigovernment slogans. Police arrested the professor.
(a) The professor has committed the offence
(b) The professor has not committed any offence
(c) The student of law has committed the offence
(d) The crowd has committed an offence

183. **Principle:** Where two or more persons have made a complaint for the grant of compulsory licence to the copyright board, the licence shall be granted to that complainant only who, in the opinion of the copyright board, would best serve the interests of the general public.
Facts: Four persons made a complaint for the grant of compulsory licence to the copyright board.
 (a) Licence shall be granted to only one complainant
 (b) Licence may be granted to two complainants
 (c) Licence may be granted to three complainants
 (d) Licence must be granted to all the four complainants
184. **Principle:** Any police officer, not below the rank of a Sub-Inspector, may, if he is satisfied that an offence in respect of the infringement of copyright in any work has been, is being, or is likely to be, committed, seize without warrant, all copies of the work and all plates used for the purpose of making infringing copies of the work, wherever found and all copies and plates so seized shall, as soon as practicable, be produced before a Magistrate.
Facts: A Superintendent of Police (SP) conducted a raid on a shop and found pirated copies of books. The SP formed an opinion that infringement of copyright is taking place. He arrested the shop owner without warrant in the light of above mentioned propositions.
 (a) The arrest of the shop owner was within the power of the SP
 (b) The arrest of the shop owner was not within the power of the SP
 (c) The shop owner can never be arrested
 (d) SP was not competent to know whether infringement of copyright has taken place
185. **Principle:** Whoever attempts to commit an offence punishable by the Indian Penal Code and in such attempt does any act towards the commission of the offence, shall be punished. Stealing is an offence punishable by the Indian Penal Code.
Facts: A makes an attempt to steal some jewels by breaking open a box and after so opening the box, finds that there is no jewel in it.
 (a) A has committed no offence
 (b) A has committed the offence of stealing
 (c) A has attempted to commit the offence of stealing
 (d) None of the above
186. **Principle:** Whoever by words either spoken or intended to be read, or by signs or by visible representations, makes or publishes any imputation concerning any person intending to harm, or knowing or having reason to believe that such imputation will harm, the reputation of such person, is said to defame that person.
Facts: In a community there is a custom of stealing shoes of bridegroom during the marriage ceremony. The shoes of the bridegroom were stolen by Y, A announced that Z has stolen the shoes. Everyone present in the marriage party started staring at Z with great surprise. Z felt very ashamed.
 (a) A defamed Z
 (b) A did not defame Z
 (c) A defamed Z for Z felt very ashamed
 (d) A defamed the whole marriage party
187. **Principle:** An employer is liable for the negligence of his employee. But an employer is not liable for the negligence of his employee, if the victim of such negligence is one of his other employees.
Facts: A and B were working in factory as unskilled labourers. A was carrying a basket of stones on his head. B was sitting on the ground. When A crossed B, all of a sudden a stone fell down from the basket and hit B on his head. B died immediately.
 (a) The owner of the factory will be liable
 (b) A and the owner of the factory shall be jointly liable
 (c) The owner of the factory will not be liable
 (d) None of the above

188. **Principle:** Damages are the money recompense, as far as money can do, for the violation of a right.
Facts: A, an Indian citizen, having a right to vote, was not allowed to cast his vote on the polling booth, by the returning officer. Name of A was mentioned in the voter's list. A has also reported at the polling booth in time. However, the candidate in whose favour A would have cast his vote won the election. A filed a suit claiming damages.
(a) A will be entitled to damages (b) A will not be entitled to damages
(c) A will be entitled to only nominal damages (d) A will be entitled to exemplary damages
189. **Principle:** When a party to a contract has refused to perform, or disabled himself from performing, his promise in its entirety, the other party may put an end to the contract.
Facts: A engaged B on April 12 to enter his service on June 1 but on May 11, A wrote to B that his services would not be needed. On May 22, B joined C for employment.
(a) B must wait till June 1 (b) B must have joined C on May 11
(c) B is not bound to wait till June 1 (d) A must pay damages to B
190. **Principle:** When a person voluntarily agrees to suffer some harm, he is not allowed to complain for that.
Facts: A was one of the spectators at a formula one car race, being held at Gurgaon, on a track owned by one M company. During the race, there was a collision between two racing cars, one of which was thrown away amidst spectators, thereby causing an injury to A, A claims damages for the injuries caused to him.
(a) M company will be liable for damages because the injury was caused during the race organized by it
(b) M company will not be liable for damages because A had come to see the race on his own will
(c) M company will not be liable for damages because the collision between the cars was beyond its control
(d) M company will be liable because it has earned huge revenue by way of sale of tickets for the event
191. **Principle:** An interest which is created on a transfer of property and depends upon the fulfillment of a condition will fail if the fulfillment of the condition is impossible or is forbidden by law or is of such a nature that, if permitted, it would defeat the provisions of any law or is fraudulent or involves or implies injury to the person or property of another or the court regards it as immoral or opposed to public policy.
Facts: A gives Rs. 10 Lakh to B on condition that B shall marry A's daughter C. On the date on which A gave Rs. 10 Lakh to B, C was dead.
(a) B's interest in Rs. 10 Lakh fails because of impossibility
(b) B's interest in Rs. 10 Lakh fails because of immorality
(c) B's interest in Rs. 10 Lakh fails because of prohibition by law
(d) B's interest in Rs. 10 Lakh does not fail
192. **Principle:** A condition precedent must be complied with before the happening of the event to which such a condition is attached. Fulfilment of such a condition after the happening of the event is no fulfillment of condition.
Facts: A transfers Rs. 5000 to B on condition that he shall marry with the consent of C, D and E. As C, D and E had to go abroad for some business purposes and as the date of marriage was already fixed, therefore, B marries without the consent of C, D and E but obtains their consent after the marriage when C, D and E return to their country.
(a) B has fulfilled the condition
(b) B has not fulfilled the condition
(c) B was free to marry any one without the consent of any body
(d) B must divorce his wife as he married her without fulfilling the condition
193. **Principle:** In an agreement, a condition subsequent must be complied with, to claim the benefit of that agreement.
Facts: A agrees to transfer a farm to B, provided that, if B does not go to England within three years after the date of the agreement, his interest in the farm shall cease. B does not go to England within the term prescribed.
(a) B's interest in the farm continues
(b) B's interest in the farm does not continue
(c) B has a fundamental right to go to England or not to go to England and hence the condition was illegal
(d) The agreement between A and B was void

194. **Principle:** Existence of all the alleged facts is relevant whether they occurred at the sametime and place or at different times and places.
Facts: A, a permanent resident in a foreign country who never visited India, is accused of waging war against the Government of India by taking part in an armed insurrection in which property is destroyed, troops are attacked and prisons are broken open.
(a) The existence of ail the above mentioned alleged facts is relevant
(b) Only the alleged fact that A is accused of waging war against the Government of India is relevant
(c) The fact that A was a permanent resident in a foreign country who never visited India is nor relevant
(d) Only the alleged fact of taking part by A in armed insurrection is relevant
195. **Principle:** Whoever desires any court to give judgment about any legal right or liability which depends on the existence of those facts which he asserts, must prove that those facts exist.
Facts: A asserts that B, C and D have committed an offence of criminal conspiracy and therefore A desires a Court to give judgment that B, C and D shall be punished for that crime which A says B, C and D have committed.
(a) A must prove that B, C and D have committed the crime
(b) B, C and D must prove that they have not committed the crime
(c) A must prove that B, C and D were present at the place of crime
(d) Police must prove that B, C and D have committed the crime
196. **Principle:** The fact that any person was born during the continuance of a valid marriage between his mother and any man, or within two hundred and eighty days after its dissolution, the mother remaining unmarried, shall be conclusive proof that he is the legitimate son of that man, unless it can be shown that the parties to the marriage had no access to each other at any time when he could have been begotten.
Facts: X and Y married on January 15, 1995. Y, the wife of X, never left her parental home and never went to her husband's home. A boy was born to Y on July 15, 1995. For the court
(a) there shall be a conclusive proof that the boy is the legitimate son of X
(b) there shall be no conclusive proof that the boy is the legitimate son of X
(c) there shall be a conclusive proof that the boy is the illegitimate son of X
(d) there shall be no evidence at all
197. **Principle:** An unlawful interference with a person's use or enjoyment of land or some right over, or in connection with it, is a nuisance in law of tort.
Facts: During the scarcity of onions, long queues were made outside the defendant's shop who having a license to sell fruits and vegetables used to sell only 1 kg of onion per ration card. The queues extended on to the highway and also caused some obstruction to the neighbouring shops. The neighbouring shopkeepers filed a suit for nuisance against the defendant. Which one of the following decision will be correct in this suit?
(a) The defendant is liable for nuisance
(b) The defendant is not liable for nuisance
(c) The defendant is liable under the principle of strict liability
(d) The plaintiff's suit should be declared in favour of the neighbouring shopkeeper
198. **Principle:** Every agreement in restraint of the marriage of any person, other than a minor, is void.
Facts: Qadir Khan died in a road accident. Two co-widows, Sultana and Marjina enter into an agreement that if any of them will remarry, would forfeit her right to her share in the deceased husband's property.
(a) The agreement is void because it was restraint of marriage
(b) The agreement is not void because no restraint was imposed upon either of two widows for remarriage
(c) The restraint was partial so agreement is valid
(d) None of the above

199. **Principle:** Nothing is an offence merely by reason of its being done with the knowledge that it is likely to cause harm, if it be done without any criminal intention to cause harm and in good faith for the purpose of preventing or avoiding other harm to a person or property.
- Facts:** Mr. Sharman, the Italian captain of a steam vessel, suddenly and without any fault or negligence on his part, finds himself near the Kochi coast in such a position that before he can stop his vessel, he must inevitably run down a boat B with twenty or thirty passengers on board, unless he changes the course of his vessel, and that by changing his course, he must incur risk of running down a boat C with only two passengers on board, which he may possibly clear. Whether Sharman has committed an offence?
- (a) Sharman has committed no offence because this was done out of necessity
 - (b) Sharman can be held responsible for the act of criminal negligence
 - (c) Sharman can be held responsible for culpable homicide
 - (d) This is a clear case of accident so Sharman cannot be held responsible
200. **Principle:** Only the parliament or the State Legislatures have the authority to enact laws on their own. No law made by State can take away a person's fundamental right.
- Facts:** Parliament enacted a law, which according to a group of lawyers is violating the Fundamental Rights of traders. The group of lawyers filed a writ petition against the Parliament for enacting such law and requests the court to quash the law and to direct the Parliament to make a new law.
- (a) No writ would lie against the Parliament, as the Court has no authority to direct the Parliament to enact or re-enact a law
 - (b) The Court can quash the existing law, if it violates fundamental right and can direct to make a new law
 - (c) The Court can quash the existing law, if it violates fundamental right but cannot direct the Parliament to make a new law
 - (d) None of the above

CLAT 2013: Answer Key

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